

The Uttar Pradesh Prevention Of Cow Slaughter Act, 1955

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[The Uttar Pradesh Prevention Of Cow Slaughter Act, 1955](#)

[An Act to prohibit and prevent the slaughter of cow and its progeny in Uttar Pradesh](#)

[Whereas it is expedient to prohibit and prevent the slaughter of cow and its progeny in Uttar Pradesh;](#)

[It is hereby enacted in the sixth year of the Republic of India as follows:](#)

[1.](#)

[Short title, extent and commencement](#)

[\(1\)](#)

[This Act may be called the Uttar Pradesh Prevention of Cow Slaughter Act, 1955.](#)

[\(2\)](#)

[It extends to the whole of Uttar Pradesh.](#)

(3)

It shall come into force at once.

2.

Definitions

In this Act, unless there is anything repugnant in the subject to context--

(a)

'beef' means flesh of cow but does not include such flesh contained in sealed containers and imported as such into Uttar Pradesh;

(b)

'cow' includes a heifer, or calf;

(c)

'Goshala' means a Goshala registered under the Uttar Pradesh Goshala Adhiniyam, 1964;

(cc)

'Institution' means an institution established under Section 6;

(d)

'slaughter' means killing by any method whatsoever and includes maiming and inflicting of physical injury which in the ordinary course will cause death;

(e)

'State Government' means the Government of Uttar Pradesh; and

(f)

'uneconomic cow, includes, stray, unprotected, infirm, disabled disease r barren cow.

3.

Prohibition of Cow Slaughter

No person shall slaughter or cause to be slaughtered, or offer or cause to be offered for slaughter, a cow, bull or bullock in any place in Uttar Pradesh, anything contained in any other law for the time being in force or any usage or custom, to the contrary notwithstanding.

4.

Omitted

5.

Prohibition on sale of beef

Except as herein excepted and notwithstanding anything contained in any other law for the time being in force, no person shall sell or transport or offer for sale or transport or cause to be sold or transported beef or beef-products in any form except for such medicinal purposes as may be prescribed.

Exception.--A person may sell and serve or cause to be sold and severed beef or beef-products for consumption by a bona fide passenger in an aircraft or railway train.

5A.

Regulation on transport of cow, etc

(1)

No person shall transport or offer for transport or cause to be transported any cow, or bull or bullock, the slaughter whereof in any place in Uttar Pradesh is punishable under this Act, from any place within the State to any place outside the State, except under a permit issued by an officer authorised by the State Government in this behalf by notified order and except in accordance with the terms and conditions of such permit.

(2)

Such officer shall issue the permit on payment of such fee not exceeding five hundred rupees for every cow, bull or bullock as may be prescribed:

Provided that no fee shall be chargeable where the permit is for transport of the cow, bull or bullock for a limited period not exceeding six months as may be specified in the permit.

(3)

Where the person transporting a cow, bull or bullock on a permit for a limited period does not bring back such cow, bull or bullock into the State within the period specified in the permit, he shall be deemed to have contravened the provision of sub-section (1).

(4)

The form of permit, the form of application therefore and the procedure for disposal of such application shall be such as may be prescribed.

(5)

The State Government or any officer authorised by it in this behalf by general or special notified order, may, at any time, for the purpose of satisfying itself, or himself, as to the legality or propriety of the action taken under this section, called for and examine the record of any case and pass such orders thereon as it or he may deemed fit.

6.

Establishment of institution

There shall be established by the State Government or by any local authority, wherever so directed by the State Government or by a society registered under the Societies Registration Act, 1860 with prior permission of the State Government under such terms and conditions as may be prescribed, institution as may be necessary for taking care of cows, bulls or bullocks.

7.

Maintenance of cows, etc

(1)

Any person may surrender his cow, bull or bullock to a Goshala or an institution which shall accept such cow, bull or bullock according to the availability of accommodation. Any cow, bull or bullock so surrendered shall not be returned to such person.

(2)

The State Government may make such other alternative and additional arrangements for taking care of such cows, bulls or bullocks as it may deem necessary.

(3)

Any Goshala or any institution may receive any cow, bull or bullock for custody from police or any other person which may be released to the owner on such terms and conditions and in such manner and on payment of such charges as may be prescribed.

8.

Penalty

(1)

Whoever contravenes or abets the contravention of the provisions of Section 3, Section 5 or Section 5-A shall be punished with rigorous imprisonment for a term which may extend to seven years and with fine which may extend to ten thousand rupees.

(2)

Whoever attempts to commit an offence punishable Under sub-section (1) shall be punished with imprisonment for a term which may extend to one-half of the longest term of imprisonment provided for that offence and with such fine as is provided for the offence.

9.

Offences to be cognizable and non-bailable

Notwithstanding anything contained in the Code of Criminal Procedure, 1898, an offence punishable under sub-section (1) of Section 8 shall be cognizable and non-bailable.

10.

Power to make rules

(1)

The State Government may make rules for the purpose of carrying into effect the provisions of this Act.

(2)

Without prejudice to the generality of foregoing powers, such rules may provide for--

(d)

the procedure for surrender, acceptance, custody and release of cows, bulls or bullocks;

(dd)

the terms and conditions of release of cows, bulls or bullocks;

(e)

the matters relating to the establishment, maintenance, management, supervision and control of institutions referred to in Section 6;

(f)

the duties of any office or authority having jurisdiction under this Act, the procedure to be followed by such officer or authority; and

(g)

the matter which are to be and may prescribed.

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